

ESTATE OF DORIS RODGERS

Case Number: 24PB-0032535

This matter is on calendar for further proceedings on a Petition for Letters of Administration. A Second Amended Petition was filed May 7, 2025. The matter has been properly noticed, with proof of service on file. The Public Administrator remains the Personal Representative of the estate.

As to Mark Curtin's Petition, a Second Amended Petition for Letters of Administration was filed May 27, 2025. The Petition contains the following defects:

1. No proof of publication has been filed. The Petition states publication will be arranged via "Facebook." Probate Code § 8121 specifies that notice must be published in a newspaper of general circulation where the decedent resided at the time of death or where the decedent's property is located. "Facebook" is not legally recognized as a newspaper for the purposes of publishing the Notice of Petition to Administer Estate.
2. There are no proper grounds marked under Item 3(e) that allows the Court to waive the requirement of a bond.
3. On the Petition, item 5(a) 7 or 8 must be marked.
4. The matter has not been properly noticed. The proof of service filed May 27, 2025, indicates Mr. Curtin served the documents himself. The documents must be served by someone age 18 or older who is not a party to this cause. Mr. Curtin, as a party to the cause, is precluded from serving his own documents.
5. The Court notes previous Petitions indicated that the decedent had a will, and a copy of the will has been attached to multiple filings by Mr. Curtin. The Petitioner is now requesting Letters of Administration and says there is not a will. If there is no will, then Mr. Curtin has no interest in the property, as he is not an intestate heir.

As a personal representative has already been appointed in this matter, and Mr. Curtin does not have any superior priority for appointment, his Petition is **DENIED**.

A Request to Dismiss Full Probate was also filed by Mr. Curtin May 27, 2025. The request has not been properly noticed. In addition, there is no valid legal basis for dismissing the current estate administration. It is true that there is a probate procedure for small estates. That procedure is appropriate when the person entitled to inherit the property is the Petitioner. Otherwise, a probate is required. The request to dismiss full probate is **DENIED**.

Lastly, the matter is also on calendar for further proceedings on a Petition for Order Directing Return of Possession of Real Property. The Court previously deemed the matter properly noticed, and Mark Curtin has filed several responses. The Court has received and reviewed the Status Report filed May 22, 2025, which requests an extension of time. The matter is continued to **Monday, June 9, 2025, at 2:30pm in Department 44** for further proceedings regarding the 850 Petition. **No appearance is necessary on today's calendar.**

ESTATE OF JANELLE SALLADY

Case Number: 25PB-0032896

This matter is on calendar for hearing on a Petition for Letters of Administration. The matter has been properly noticed, with proof of service on file. No objections have been raised. The paperwork appears to be in order, with the exception that no proof of publication has been filed. The Court notes the Petition states that publication will be arranged via the Mt. Shasta Herald. Probate Code § 8121 specifies that notice must be published in a newspaper of general circulation where the decedent resided at the time of